

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

PRESENT: HON. BRENDAN T. LANTRY

PART

46M

Justice

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KENILWORTH HOLDINGS LLC, 21-45 23RD ST. LLC, 39-12
62ND ST. LLC, 42-59 BOWNE ST. LLC, 1369 COLLEGE LLC,
593 PARK PLACE MANAGEMENT INC., and 43RD STREET
ASSOCIATES LLC,

INDEX NO. 453580/2026MOTION DATE 09/02/2026MOTION SEQ. NO. 001

Petitioners-Plaintiffs,

DIFIORE REALTY LLC,

Intervenor-Petitioner,

- v -

NEW YORK CITY RENT GUIDELINES BOARD,

**ORDER – INTERIM
(MOTION RELATED)**

Respondent-Defendant,

NEW YORK STATE TENANTS AND NEIGHBORS,
METROPOLITAN COUNCIL ON HOUSING, ELISA BLYNN,
MASSEIL SANTOS MOTA, MAGALI R. RIVERA UBIDIA,
RAYMUDA VAZQUEZ, ABUNDIO GONZALEZ, CENTRAL
PARK GARDENS TENANTS' ASSOCIATION, INC.,
P.A.'L.A.N.T.E. HARLEM, and HAMILTON HEIGHTS TENANT
ASSOCIATION,

Intervenor-Respondents-Defendants.

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The following e-filed documents, listed by NYSCEF document number (Motion 001) 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 19, 21, 22, 23, 24, 42, 69, 70, 71, 72, 73, 74, 75, 76, 77, 78, 79, 80, 81, 82, 83, 84, 85, 86, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 97, 98, 99, 100, 101, 102, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, 114, 115, 116, 117, 118, 126, 133, 150, 160, 162, 163, 191, 202, 204, 222, 223, 224, 225, 226, 227, 228, 229, 230, 231

were read on this motion for

ARTICLE 78/JUDGMENT - DECLARATORY

WHEREAS by interim decision and order dated September 16, 2026 (“September 16, 2026 Interim Decision and Order”), this court granted count four of petitioners-plaintiffs’ petition to the extent that the court found certain limited discovery to be necessary in this matter (NY St Cts Elec Filing Doc No. [NYSCEF] Doc No. 222); and

WHEREAS on September 18, 2026 and in accordance with the September 16, 2026 Interim Decision and Order, petitioners-plaintiffs filed discovery demands via NYSCEF (NYSCEF Doc No. 225 and 228) (“petitioners-plaintiffs’ discovery demands”); and

WHEREAS by interim order dated September 18, 2026 ("September 18, 2026 Interim Order"), this court ordered the parties to appear for a discovery conference on September 24, 2026 at 9:30 am at 60 Centre Street, room 300, New York, New York (NYSCEF Doc No. 226); and

WHEREAS on September 23, 2026 and in accordance with the September 18, 2026 Interim Order, respondent-defendant filed a response to petitioners-plaintiffs' discovery demands (NYSCEF Doc No. 231); and

WHEREAS on September 24, 2026, this court conducted a discovery conference with the parties; and

WHEREAS for the reasons set forth on the record on September 24, 2026; it is now hereby

ORDERED that respondent-defendant shall provide the parties and the court with screenshots of all communications responsive to petitioners-plaintiffs' discovery demands by September 29, 2026; and it is further

ORDERED that respondent-defendant shall provide a complete response to petitioners-plaintiffs' discovery demands within thirty (30) days of the date of this order.

This constitutes the order of the court.

<u>9/24/2026</u>			
DATE		BRENDAN T. LANTRY, J.S.C.	
CHECK ONE:	☐ CASE DISPOSED	☒ NON-FINAL DISPOSITION	
	☐ GRANTED ☐ DENIED	☐ GRANTED IN PART	☒ OTHER
APPLICATION:	☐ SETTLE ORDER	☐ SUBMIT ORDER	
CHECK IF APPROPRIATE:	☐ INCLUDES TRANSFER/REASSIGN	☐ FIDUCIARY APPOINTMENT	☐ REFERENCE